

103	2017-00910991 NNN Capital Fund I, LLC vs. Mikles	Motion to Set Aside/Vacate Judgment Defendant/Judgment Debtor Todd Anthony Mikles’ motion to vacate the judgment(s) in this case is taken off calendar. This Court lacks jurisdiction to hear the motion. Mr. Mikles is ordered to contact the Court to re-set the motion for hearing after remittitur issues, if he chooses. On 3/20/26, the Court of Appeal issued its published Opinion reversing the Judgment(s) in this case. (ROA 1551, 1583.) Plaintiff NNN Capital Fund I, LLC has filed a Petition for review with the California Supreme Court. (O’Keefe Decl., ¶15.) Code of Civil Procedure § 916(a) provides that the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby. (CCP § 916.) The trial court may proceed only upon matters embraced in the action and <i>not affected</i> by the judgment or order (CCP § 916.) Jurisdiction of appellate court terminates and jurisdiction of trial court reattaches only upon remittitur. (<i>Andrisani v. Saugus Colony Limited</i> (1992) 8 Cal.App.4th 517, 523.) Here, the Court lacks jurisdiction to hear this motion seeking to vacate the Judgment(s) because remittitur has not issued. Plaintiff is ordered to serve notice of this ruling.
105	2025-01485193 Scott vs. Stronghold LLC	Motion - Other Plaintiff Raeline Scott’s Motion for Order to Serve Secretary of State is granted. Corporations Code section 1702 permits the court to authorize delivery of process to the Secretary of State when the plaintiff has shown that process could not be served with reasonable diligence on the corporation’s designated agent, or on the corporation by any other authorized method. (Corps. Code § 1702, subd. (a).) The Court finds Plaintiff has proffered evidence that her process server was reasonably diligent in attempting to serve process on defendant Innovative Real Estate Planning Group, Inc.’s agent, Vladimyr Frazilus, at the address designated: 1932 E Deere Ave, Suite 240, Santa Ana, CA 92705. However, the process server was told by the current tenant that defendant was no longer the tenant at that address. (ROA 36 [Nguyen Decl. at ¶ 6]; see also ROA 28 [Declaration of Due Diligence].) Despite several more efforts to locate a potential address where defendant’s agent could be served, Plaintiff was not able to effect service at any of these locations. (Nguyen Decl. at ¶¶ 7-16.) Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods (e.g., personal, substitute, acknowledgement of receipt) on Defendant. Accordingly, the Court orders service to be made upon Innovative Real Estate Planning Group, Inc. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State’s office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).)